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Case Name: *Estate of Fred Townsend*

Case No.: 24PR198523

The above-entitled action came on for hearing before the Honorable Charles Adams on May 27, 2026, at 10:00 a.m. in Department 7. The matter having been submitted, the Court finds and orders as follows:

INTRODUCTION

Jeanne Elizabeth Downey (“Respondent”) initiated this case by filing a petition to for letters of administration seeking to be named administrator of the estate of Fred Townsend (“Decedent”), whom she asserted was her spouse. Letters of administration issued on February 3, 2025. On August 5, 2025, Alicia King (“Petitioner”), also claiming to be the spouse of Decedent, filed a petition to determine heirship. Petitioner passed away on August 12, 2025. On September 25, 2025, Respondent filed an answer to the petition to determine heirship and on January 21, 2026, Respondent filed an objection to the petition to determine heirship.

Currently before the court is a motion by the personal representative of Petitioner’s estate, Joseph King, III (“Movant”) seeking to substitute in a petitioner for the purposes of the petition to determine heirship and to file an amended petition reflecting the substitution. Respondent filed a late limited opposition arguing only that her defenses and challenges to the identity of the person who filed the petition survive despite the substitution.¹

¹ An opposition to a motion must be filed nine court days prior to the hearing on the motion. Here, the opposition was filed on May 19, 2026, fewer than nine court days before the hearing, which is scheduled for May 27, 2026. Nonetheless, the court has discretion to consider a late-filed paper and it will do so here. (Cal. Rules Ct., rule 3.1300(d); *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.)

DISCUSSION

I. Legal Background

A. Substitution of the Petitioner

An action for or against a decedent is not lost by reason of that person's death. (Code Civ. Proc., § 377.21.) The claims survive subject to the applicable limitations period. (Code Civ. Proc., § 377.20, subd. (a).) "On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." (Code Civ. Proc., § 377.31.)

B. Amendment of the Petition

Code of Civil Procedure sections 473, subdivision (a), and 576 provide that the court "may, in the furtherance of justice," allow a party to amend any pleading. "It is well established that 'California courts have "a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others." [Citation.] Indeed, "it is a rare case in which 'a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case.' "[Citation.]" [Citation.] Thus, absent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail. [Citation.]" (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163.) Generally, leave to amend must be liberally granted [citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. [Citation.]" (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

" 'Leave to amend a complaint is thus entrusted to the sound discretion of the trial court. . . .' [Citations.]" (*Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242.) "[I]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment. [Citation.]" (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) The court does not abuse its discretion by denying leave

to amend where the facts stated do not constitute a cause of action. (See *IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 654.)

II. Merits of the Motion

Movant contends that he is the personal representative of Petitioner's estate and he has attached to his motion as Exhibits B and C an order for probate and letters of administration issued to him. He has also provided Petitioner's death certificate as Exhibit A. Accordingly, Movant has established he is entitled to substitute into the action. (Code Civ. Proc., § 377.31.)

As to the amendment, Movant seeks to file an amended petition to determine heirship to reflect the fact that he is now the petitioner. The court notes that Movant has bolded certain portions of the petition that were not previously bolded but he has otherwise kept the language of the petition intact save for the information regarding his substitution. The court finds the amendment proper.

Respondent has filed a limited opposition in which she argues that there is reason to believe that Petitioner did not actually file the petition to determine heirship and asserting that she has raised various defenses to the petition. She seeks a ruling that these arguments and defenses are preserved despite the substitution of Movant as petitioner. The court will make such an order. "[A] successor in interest under section 377.11 'step[s] into [the decedent's] position,' as to a particular action. [Citation.]" (*Exarhos v. Exarhos* (2008) 159 Cal.App.4th 898, 906.) Thus, the defenses that were asserted against Petitioner, if successful, may also bar Movant from relief.

CONCLUSION

The motion is GRANTED. Respondent's defenses and the issue of whether Petitioner actually filed the petition to determine heirship are hereby preserved for determination in connection with the petition to determine heirship or any motion in which those issues may be properly raised

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Calendar Line 3

Case Name: *Estate of Marie Rosenblatt*

Case No.: 25PR199986

The above-entitled action came on for hearing before the Honorable Charles Adams on May 27, 2026, at 10:00 a.m. in Department 7. The matter having been submitted, the court finds and orders as follows:

INTRODUCTION

On April 14, 2025, attorney Marie Rosenblatt, Esq. (“Decedent”) passed away. Pursuant to a will drafted in 1976, the court issued letters of administration to Sister Susan Sanders, RSM following her successful petition for probate.

Currently before the court is a motion, by Charles J. Nagaele, Esq. (“Movant”), an attorney who worked with Decedent on the marital dissolution case, to be appointed “partial” practice administrator of the deceased attorney’s practice solely as to one specific IOLTA account containing the proceeds of a home sold in the marital dissolution case. The motion is unopposed. The motion previously came on for hearing and was continued to May 27, 2026 so that the court could receive further information from Movant. Movant has now filed a supplemental declaration.

DISCUSSION

Movant asserts that he was co-counsel with Decedent in *Martha Rogers v. Alvin Rogers*, 21FL003805, a marital dissolution case. During the pendency of the case, Decedent placed \$250,000, consisting of the proceeds of the sale of the marital home, into an IOLTA account. That case has now resulted in a judgment of dissolution and the proceeds are ready to be distributed pursuant to the judgment. Movant seeks to be named partial practice administrator over the IOLTA account.

Movant relies on Probate Code section 9674, which provides, in pertinent part, “The personal representative of the estate of a deceased attorney who was engaged in a practice of law at the time of his or her death or other person interested in the estate may bring a petition